



Small Pelagic Fishery Management Plan 2009

made under section 17 of the

Fisheries Management Act 1991

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About this compilation

This compilation

This is a compilation of the *Small Pelagic Fishery Management Plan 2009* that shows the text of the law as amended and in force on 14 October 2024 (the *compilation date*).

The notes at the end of this compilation (the *endnotes*) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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Part 1 Preliminary

1 Name of Management Plan

This Management Plan is the *Small Pelagic Fishery Management Plan 2009*.

3 Definitions

In this Plan:

Act means the *Fisheries Management Act 1991*.

address means:

- (a) for the holder of an SFR — the holder's address stated in the Register; and
- (b) for the holder of a fishing permit — the last address recorded by AFMA for the holder of the permit.

advisory committee means a committee of a kind mentioned in section 56 of the *Fisheries Administration Act 1991* that is established by AFMA under section 54 of that Act to advise AFMA about the fishery.

approved form means the form approved by AFMA under section 55.

area of the fishery means the total of the sub-areas described in clauses 1, 2 and 3 of Schedule 1.

Australian sardine means the fish for which the scientific name is *Sardinops sagax*.

Australian sardine SFR means an SFR that is a right to take a particular quantity of Australian sardine in the Australian sardine sub-area.

Australian sardine sub-area means the part of the area of the fishery described in clause 3 of Schedule 1.

blue mackerel means the fish for which the scientific name is *Scomber australasicus*.

by-catch means marine life that is:

- (a) taken in the fishery and returned to the sea for any reason; or
- (b) affected by interacting with fishing equipment in the fishery, but not taken.

by-catch action plan means a plan mentioned in section 14.

certificate, for an SFR, means a certificate given under subsection 22 (2) of the Act as evidence of the grant of the SFR.

commencement day means the day on which this Management Plan commences.

eastern sub-area means the part of the area of the fishery described in clause 1 of Schedule 1.

eastern sub-area blue mackerel SFR means an SFR that is the right to take a particular quantity of blue mackerel in the eastern sub-area.

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eastern sub-area jack mackerel SFR means an SFR that is the right to take a particular quantity of jack mackerel in the eastern sub-area.

eastern sub-area redbait SFR means an SFR that is the right to take a particular quantity of redbait in the eastern sub-area.

eligible person means a person who:

- (a) is registered as an eligible person for a grant of an SFR under section 26 of the Act; and
- (b) satisfies the conditions for registration mentioned in subsection 31 (2).

e-mail address, of a person, means the e-mail address (if any) given to AFMA by the person.

EPBC Act means the *Environment Protection and Biodiversity Conservation Act 1999*.

fax number means:

- (a) for the holder of an SFR — the holder's fax number stated in the Register; and
- (b) for the holder of a fishing permit — the last fax number recorded by AFMA for the holder.

fishery means the Small Pelagic Fishery.

Harvest Strategy means the strategy for the fishery determined under section 15.

holds, for a sequence of permits or licences, has the meaning given by section 5.

IMF 1 sub-area means the part of the area of the fishery described in clause 1 of Schedule 3.

IMF 2 sub-area means the part of the area of the fishery described in clause 2 of Schedule 3.

Informally Managed Fishery permit — Australian sardine means a fishing permit that authorises a person to use an Australian boat to fish for Australian sardines and Sandy Sprat in the IMF 2 sub-area using the purse seine fishing method, whether or not it also authorises fishing for another species.

Informally Managed Fishery permit — Australian sardine and blue mackerel means a fishing permit that authorises a person to use an Australian boat and the purse seine fishing method:

- (a) to fish for Australian sardines in the Australian sardine sub-area; and
- (b) to fish for blue mackerel in the IMF 1 sub-area;

whether or not it also authorises fishing for another species.

jack mackerel means a species of fish for which the scientific name is *Trachurus declivis* or *Trachurus murphyi*.

Mackerel A licence means a licence called 'Fishing Licence (Mackerel A)', issued under the *Living Marine Resources Management Act 1995* (Tas) that authorises the holder to fish using the purse seine method.

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Mackerel B licence means a licence:

- (a) called 'Fishing Licence (Mackerel B)' issued under the *Fisheries Act 1995* (Tas) and continued in force under section 10 of the *Marine Resources (Savings and Transitional) Act 1995* (Tas); and
- (b) authorising the holder to fish using the purse seine fishing method.

nominated boat, means:

- (a) for an SFR, a boat the details of which are entered in the Register, under section 45 of the Act, as the nominated boat for the SFR; and
- (b) for a fishing permit, a boat the details of which are entered in the Fishing Permits Register, under section 57H of the Act, as the nominated boat for the permit.

non-quota species means a species of fish other than a quota species.

notice means:

- (a) for the Act, a notice that AFMA is required or allowed to give, in writing, under the Act; or
- (b) for this Management Plan, a written notice that AFMA is required or allowed to give under this Plan.

notice period means the period specified in a notice that:

- (a) is published by AFMA under section 24 of the Act; and
- (b) invites interested persons to apply to AFMA to be registered as an eligible person for the grant of a fishing right for the fishery in accordance with paragraph 25 (f) of the Act.

observer means a person who is nominated by AFMA to carry out the functions of an observer under this Management Plan.

quota, for a statutory fishing right, means the amount (by weight) of fish of a particular quota species that may be taken in a season under the statutory fishing right.

quota species means a species of fish mentioned in Schedule 4.

redbait means a fish for which the scientific name is *Emmilichthys nitidus*.

relevant period means the period from 1 July 1989 to 30 June 1996 (inclusive).

resource assessment group means a group established by AFMA to give advice in relation to the stock status, research needs, environment and economics of the fishery and any other matters related to the fishery.

Sandy Sprat means a fish for which the scientific name is *Hyperlophus vittatus*.

season has the meaning given by subsection 10 (2).

sequence, for a permit or licence, has the meaning given by section 6.

Small Pelagic Fishery means fishing for a fish of a quota or non-quota species in the area of the fishery.

statutory fishing right* or *SFR means a statutory fishing right granted under this Management Plan.

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sub-area, for the fishery, means a part of the area of the fishery described in clauses 1, 2 or 3 of Schedule 1.

total allowable catch or **TAC**, means:

- (a) for a quota species and season — the total amount (by weight) of fish of that species that may be taken in that year, under the statutory fishing rights for that species and season, in accordance with a determination made under section 17; and
- (b) for a non-quota species and season — the total amount (by weight) of fish of that species that may be taken in that period, under all fishing concessions to which the TAC applies, in accordance with a determination made under section 21.

uncaught quota has the meaning given by section 9.

western sub-area means the part of the area of the fishery described in clause 2 of Schedule 1.

western sub-area blue mackerel SFR means an SFR that is the right to take a particular quantity of blue mackerel in the western sub-area.

western sub-area jack mackerel SFR means an SFR that is the right to take a particular quantity of jack mackerel in the western sub-area.

western sub-area redbait SFR means an SFR that is the right to take a particular quantity of redbait in the western sub-area.

working day, in a place, means a day that is not, in the place:

- (a) a Saturday or Sunday; or
- (b) a public holiday.

zone, for the fishery, means a part of the area of the fishery described in clause 1, 2, 3, or 4 of Schedule 2.

Zone A means the part of the area of the fishery described in clause 1 of Schedule 2.

Zone A mid-water trawl permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone A using the mid-water trawl fishing method.

Zone A purse seine permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone A using the purse seine fishing method.

Zone B means the part of the area of the fishery described in clause 2 of Schedule 2.

Zone B dual gear permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone B using both the purse seine and mid-water trawl fishing methods.

Zone B factor has the meaning given by subsection 35 (1).

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Zone B mid-water trawl permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone B using the mid-water trawl fishing method.

Zone B purse seine permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone B using the purse seine fishing method.

Zone C means the part of the area of the fishery described in clause 3 of Schedule 2.

Zone C dual gear permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone C using both the purse seine and mid-water trawl fishing methods.

Zone C mid-water trawl permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone C using the mid-water trawl fishing method.

Zone C purse seine permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone C using the purse seine fishing method.

Zone D means the part of the area of the fishery described in clause 4 of Schedule 2.

Zone D dual gear permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone D using both the purse seine fishing and mid-water trawling methods.

Zone D factor means the sum of the following:

- (a) the total number of Zone D purse seine permits held by eligible persons;
- (b) the total number of Zone D mid-water trawl permits held by eligible persons;
- (c) 1.5 times the total number of Zone D dual gear permits held by eligible persons.

Zone D mid-water trawl permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone D using the mid-water trawl method.

Zone D permit means any of the following:

- (a) a Zone D dual gear permit;
- (b) a Zone D mid-water trawl permit;
- (c) a Zone D purse seine permit.

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Zone D purse seine permit means a fishing permit that authorises a person to use an Australian boat to fish for blue mackerel, jack mackerel and redbait in Zone D using the purse seine method.

Note Unless otherwise stated, a term used in this Management Plan and in the Act has the same meaning in this Plan as it has in the Act. The following terms are defined in the Act:

- AFMA
- AFZ
- Australian boat
- fish
- fish receiver permit
- fishing
- fishing permit
- Fish Stocks Agreement
- precautionary principle
- principles of ecologically sustainable development
- Register
- scientific permit
- take.

4 Origin of geographical coordinates

If, for the purposes of this Management Plan, it is necessary to determine the position on the surface of the earth of a point, line or area, that position must be determined by reference to the Geocentric Datum of Australia (GDA94) as defined in the *Gazette* No. GN35, 6 September 1995.

5 Meaning of *holds* a sequence of permits or licences

A person ***holds*** a sequence of permits or licences if the person holds a permit or licence that forms part of the sequence at the end of the notice period.

6 Meaning of *sequence* of Zone A purse seine permits

- (1) A ***sequence*** of Zone A purse seine permits means a number of those permits:
 - (a) each of which is connected to another of them; and
 - (b) the earliest of which was in force during the relevant period and the latest of which was held by an eligible person.
- (2) A permit to which subsection (1) applies includes:
 - (a) a permit which was first issued for another fishery, but subsequently became a Zone A purse seine permit; and
 - (b) a Commonwealth Boat Fishing License (or CBFL) that subsequently became a Zone A purse seine permit.
- (3) For paragraph (1) (a), 2 Zone A purse seine permits are ***connected*** if:
 - (a) one commenced after the other ceased to have effect; and

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- (b) the later permit was granted to the person that:
 - (i) was the holder of the earlier permit when it ceased to have effect; and
 - (ii) applied to AFMA for the grant; and
- (c) the later permit was granted because the person held the earlier permit.
- (4) As part of working out if 2 Zone A purse seine permits are connected, a sequence of the permits may exist during a period of more than 1 year even if:
 - (a) no Zone A purse seine permit was issued in a particular year; or
 - (b) no permit became a Zone A purse seine permit in a particular year.

7 Meaning of sequence of Zone D permits

- (1) A *sequence* of Zone D permits means a number of those permits:
 - (a) each of which is connected to another of them; and
 - (b) the earliest of which was in force on or before 6 July 2004 and the latest of which was held by an eligible person.
- (2) For subsection (1), two Zone D permits are *connected* if:
 - (a) each permit entitled the holder to fish in the same area of the fishery using the same fishing method; and
 - (b) one commenced after the other ceased to have effect; and
 - (c) the later permit was granted to the person that:
 - (i) was the holder of the earlier permit when it ceased to have effect; and
 - (ii) applied to AFMA for the grant; and
 - (d) the later permit was granted because the person held the earlier permit.

8 Meaning of sequence of Mackerel B licences.

- (1) A *sequence* of Mackerel B licences means a number of those licences:
 - (a) each of which is connected to another of them; and
 - (b) the earliest of which was in force during the relevant period and the latest of which was held by an eligible person.
- (2) For subsection (1), two licences are *connected* if:
 - (a) one commenced after the other ceased to have effect; and
 - (b) each was granted to the same person; and
 - (c) the later licence was granted because the person held the earlier licence.

Note There is no sequence of permits or licences if a person held a permit or licence but surrendered it or was not granted a new permit or licence for the fishery each consecutive year, even if the person was later granted a permit or licence to fish in the same area of the fishery using the same fishing method.

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9 Meaning of *uncaught quota*

An SFR holder has *uncaught quota* during a season, for a species of fish and a sub-area, if the total amount of fish of the species taken in the sub-area by the holder during the season is less than the total of the quota for the species, sub-area and season allocated to SFRs held by the holder.

10 Periods of fishing

- (1) AFMA may determine 1 or more periods during which fishing is permitted in the fishery.
- (2) Each period is a *season* for the fishery.
- (3) AFMA must publish a determination in the *Gazette* as soon as practicable after making the determination.

11 Objectives of Management Plan

For paragraph 17 (5) (a) of the Act, the objectives of this Management Plan, and the objectives for AFMA to pursue when administering the Plan, are the same as the objectives set out in section 3 of the Act.

12 Measures by which objectives attained

For paragraph 17 (5) (b) of the Act, the measures by which the objectives of this Management Plan are to be attained include the following:

- (a) providing the services needed to manage the fishery, including:
 - (i) data collection, research and consultation; and
 - (ii) services to ensure compliance with the Plan;
- (b) annually evaluating and, if necessary, revising the range, extent and cost of the services mentioned in paragraph (a);
- (c) reviewing ecological risk assessments of marine communities, quota and non-quota species, and protected species to determine the risk to the maintenance of an ecologically sustainable fishery;
- (d) developing, in cooperation with stakeholders, a plan to strategically address any high risks identified during an ecological risk assessment;
- (e) setting catch limits, or designing other measures, for non-quota species to ensure the ecological sustainability of these species;
- (f) setting catch limits and managing quota species in accordance with the Harvest Strategy;
- (g) issuing directions prohibiting fishing in the fishery, or part of the fishery, during specified periods, informing the holders of fishing concessions about those directions, and requiring the holders to comply with the directions;
- (h) granting SFRs to eligible persons;
- (i) consulting with the advisory committee about the management of the fishery;

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- (j) in accordance with the government's cost recovery policy, preparing annual budgets and recommending levies to recover the costs of management that are attributable to the fishing industry;
- (k) identifying impediments to maximising the net economic returns to the Australian community in managing the resources of the fishery and developing strategies to minimise the effect of, or eliminate, the impediments;
- (l) reviewing and, if necessary, amending the Management Plan to improve the management of the fishery at least once during:
 - (i) the period of 5 years period commencing on the commencement day; and
 - (ii) each subsequent period of 5 years;

13 Performance criteria for assessing measures to achieve objectives

- (1) For paragraph 17 (5) (c) of the Act, the performance criteria for assessing the measures taken to achieve the objectives of this Management Plan are the following:
 - (a) that the range and cost of AFMA's services in the fishery are reviewed annually and:
 - (i) the review is published; and
 - (ii) the management of the fishery has been carried out cost-effectively;
 - (b) that the necessary risk assessments are carried out for quota species, non-quota species and protected species;
 - (c) that, in cooperation with stakeholders, a plan is developed to address any high risks identified during an ecological risk assessment;
 - (d) that catch limits, or other appropriate measures, are set for non-quota species if there is a risk to the viability of the species;
 - (e) that the management of quota species, including the use of catch limits, is done in accordance with the Harvest Strategy, and that actions taken in accordance with the Harvest Strategy are monitored, reviewed and, if appropriate, improved;
 - (f) that SFRs for each quota species are granted to eligible persons;
 - (g) that, subject to the provisions relating to overcatch, the TACs for a species are not exceeded;
 - (h) that the advisory committee was consulted on the management of the fishery;
 - (i) that the costs of the management of the fishery that are attributable to the fishing industry have been recovered;
 - (j) that impediments to maximising the net economic returns to the Australian community in managing the resources of the fishery have been identified and strategies to minimise and eliminate those impediments have been developed;
 - (k) that any changes to the management of the fishery are assessed for their likely effect on maximising the net economic returns to the Australian community in managing the resources of the fishery.

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- (2) AFMA must assess the effectiveness of this Management Plan, including the measures taken to achieve the objectives of the Plan, at least once during:
- (a) the period of 5 years period commencing on the commencement day; and
 - (b) each subsequent period of 5 years;
- by reference to the performance criteria mentioned in subsection (1) and by taking into account the advice of the advisory committee.

Part 2 Specific ecosystem requirements

14 By-catch action plans

- (1) For subsection 17 (6D) of the Act, AFMA must develop and implement a by-catch action plan for the fishery.
- (2) A by-catch action plan is in force for the period:
 - (a) beginning on the date that AFMA implements the plan; and
 - (b) ending on the date that a subsequent by-catch plan is implemented for the fishery.
- (3) If a by-catch action plan is in force, AFMA must review the plan at least once in each 2 year period that the plan is in force, commencing on the date that it came into force.
- (4) A by-catch action plan must require AFMA to ensure that:
 - (a) information is gathered about the impact of the fishery on by-catch species; and
 - (b) all reasonable steps are taken to minimise incidental interactions with seabirds, marine reptiles, marine mammals and fish of a kind mentioned in sections 15 and 15A of the Act; and
 - (c) the ecological impacts of fishing operations on habitats in the area of the fishery are minimised and kept at an acceptable level; and
 - (d) by-catch is reduced to, or kept at, a minimum, and below a level that might threaten by-catch species.
- (5) In developing a by-catch action plan, AFMA must take into account:
 - (a) the protection given to whales and other cetaceans under Division 3 of Part 13 of the EPBC Act; and
 - (b) the requirements under the EPBC Act for the protection of:
 - (i) protected species; and
 - (ii) listed threatened ecological communities.
- (6) If information gathered under a by-catch action plan shows that it may be appropriate to amend this Management Plan or change the conditions imposed on the holders of SFRs, AFMA must consider making such amendments or changes.

Note Obligations are placed on the holders of SFRs under section 50 (General obligations) to ensure that by-catch is kept to a minimum.

15 Harvest Strategy

- (1) As soon as practicable after the commencement day, AFMA must establish, for each quota species, a Harvest Strategy.

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- (2) AFMA may review the Harvest Strategy to ensure that it remains appropriate for maintaining ecologically viable stocks of the quota species and an ecologically sustainable fishery.
- (3) AFMA may establish, for a non-quota species, a Harvest Strategy that is appropriate for maintaining ecologically viable stocks of those species and an ecologically sustainable fishery.

Note Further ecosystem safeguards are contained in requirements under Part 3 (Total allowable catch).

Part 3 Total allowable catch

Division 3.1 Total allowable catch — quota species

16 Purpose of Division 3.1

This Division sets out the requirements for the determination of total allowable catch for a quota species.

17 Determination of TAC — quota species

- (1) AFMA must determine a TAC for each quota species for a sub-area of the fishery and for a season before the start of the season.
- (2) AFMA may determine a TAC for each quota species for a part of the sub-area and for a season.
- (3) AFMA must calculate the quota of a quota species that is to be allocated to an SFR holder for a sub-area or part of a sub-area of the fishery, by dividing the TAC for the quota species by the total number of SFRs in force for the species in the sub-area, or part of the sub-area, on the day on which the TAC was determined.
- (4) AFMA must specify in the determination:
 - (a) the amount of the species that may be taken, expressed in:
 - (i) whole weight; or
 - (ii) other weight, as specified in the determination; and
 - (b) the sub-area to which the determination applies; and
 - (c) if the determination specifies TAC for a part of a sub-area — that part of the sub-area.

Note A determination under this section is a disallowable instrument: see subsection 17 (6B) of the Act.

18 Consultation and matters that must be taken into account

In determining a TAC for a quota species for a sub-area or part of a sub-area of the fishery for a season, AFMA:

- (a) must consult with the advisory committee and have regard to any view expressed in that consultation; and
- (b) must take into account:
 - (i) advice from the relevant resource assessment group about the stock status of the quota species; and
 - (ii) the Harvest Strategy for the species established under section 15; and

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- (iii) all fishing mortality of the quota species for which the determination is made from all sub-areas within the fishery and overlapping or adjacent fisheries for the species; and
- (iv) the ecological implications of taking the amount of the species; and
- (v) the distribution, population and structure of the species; and
- (vi) the precautionary principle;
- (c) may consider the views (if any) of any other interested person.

19 Notice of TAC — quota species allocation

- (1) This section applies if AFMA determines a TAC for a quota species for:
 - (a) a sub-area of the fishery for a season; or
 - (b) a part of a sub-area of the fishery for a season.
- (2) As soon as practicable after determining the TAC, AFMA must give written notice to the SFR holder stating:
 - (a) if the TAC is for a sub-area of the fishery for a season:
 - (i) the TAC for the species for the sub-area of the fishery for the season; and
 - (ii) the quota allocated to the SFR holder for the species for the sub-area of the fishery for the season; and
 - (b) if the TAC is for a part of a sub-area of the fishery for a season:
 - (i) the TAC for the species for the part of the sub-area of the fishery for the season; and
 - (ii) the quota allocated the SFR holder for the season for each of the parts of a sub-area.

Division 3.2 Total allowable catch — non-quota species

20 Purpose of Division 3.2

This Division sets out the requirements for the determination of total allowable catch for a non-quota species.

21 Determination of TAC — non-quota species

- (1) AFMA may determine a TAC for a non-quota species for a period specified in the determination.
- (2) The determination must specify:
 - (a) the amount of the species that may be taken, expressed in:
 - (i) whole weight; or
 - (ii) other weight, as specified in the determination; and
 - (b) the period for which the determination applies; and

- (c) a sub-area or a part of a sub-area to which the determination applies; and
- (d) the SFRs to which the determination applies.

Note A determination under this section is a disallowable instrument: see subsection 17 (6B) of the Act.

22 Consultation and matters that must be taken into account

In determining a TAC for a non-quota species for a sub-area or part of a sub-area of the fishery for a season, AFMA:

- (a) must consult with the advisory committee and have regard to any view expressed in that consultation; and
- (b) must take into account:
 - (i) advice from the relevant resource assessment group about the stock status of the species; and
 - (ii) the Harvest Strategy for the species established under section 15; and
 - (iii) all fishing mortality of the species for which the determination is being made from all sub-areas within the fishery and overlapping or adjacent fisheries for the species; and
 - (iv) the ecological implications of taking the amount of the species; and
 - (v) the distribution, population and structure of the species; and
 - (vi) the precautionary principle; and
- (c) may consider the views (if any) of any other interested person.

23 Notice of TAC — non-quota species

As soon as practicable after AFMA determines a TAC for a non-quota species and sub-area or part of a sub-area for a period, AFMA must give to each SFR holder for the sub-area or part of a sub-area a written notice stating:

- (a) the species; and
- (b) the amount of the species that may be taken under the TAC; and
- (c) the period for which the TAC applies; and
- (d) the sub-area or a part of a sub-area to which the TAC applies.

24 Notice that TAC taken — non-quota species

- (1) This section applies if:
 - (a) AFMA has determined a TAC for a non-quota species or a sub-area or part of a sub-area of the fishery for a period; and
 - (b) the amounts of a species that may be taken under the TAC has been taken.
- (2) As soon as practicable, AFMA must give each SFR holder for the TAC written notice stating that the species must no longer be taken from the sub-area or part of the sub-area during the period that the TAC is in force.

Part 4 Right to fish in the fishery

Division 4.1 General

25 Fishing in the fishery — quota species

A person must not fish for a quota species in the fishery unless:

- (a) the person is, or is acting for, the holder of an SFR that authorises fishing for the quota species in a sub-area or part of a sub-area of the fishery; and
- (c) the person uses:
 - (i) the purse seine fishing method; or
 - (ii) the mid-water trawl fishing method; or
 - (iii) another fishing method determined by AFMA under section 27.
- (d) the SFR holder has uncaught quota for the species in the sub-area or part of a sub-area.

26 Fishing in the fishery — non-quota species

- (1) This section applies if:
 - (a) a person is, or is acting for, the holder of an SFR for the fishery; and
 - (b) the person is permitted to fish in the fishery using:
 - (i) the purse seine fishing method; or
 - (ii) the mid-water trawl fishing method; or
 - (iii) another fishing method determined by AFMA under section 27; and
 - (c) the person fishes for a quota species in the fishery using 1 of those methods; and
 - (e) if a TAC has been determined for the species under section 21 — AFMA has not issued a notice under section 24 for the species; and
 - (f) the person incidentally catches an amount of non-quota species.
- (2) The person is permitted to take and keep the catch if:
 - (a) the non-quota species is a species for which quota has been granted under another plan of management made under the Act; and
 - (b) the SFR holder:
 - (i) has quota to take that amount of the species under that plan; or
 - (ii) obtains quota to take that amount of the species under that plan.
- (3) The person is permitted to take and keep the catch if the taking of the non-quota species is not prohibited or limited by a determination made under section 21.

Section 29

27 AFMA may determine fishing method

- (1) AFMA may determine a fishing method other than the purse seine or mid-water trawl fishing methods for use by persons fishing in the fishery.
- (2) The determination must specify:
 - (a) the fishing method, other than the purse seine or mid-water trawl method, that may be used by persons fishing in the fishery; and
 - (b) the period for which the determination applies; and
 - (c) if the determination applies to a sub-area or a part of a sub-area of the fishery — the sub-area or part of a sub-area.
 - (d) the SFRs to which the determination applies.

28 Carrying, transshipping or processing fish

A person must not use a boat to carry, tranship or process fish in accordance with this Management Plan unless:

- (a) the boat is:
 - (i) specified in a fishing permit held by the person and granted under subsection 32 (1) of the Act; or
 - (ii) nominated for a fishing permit held by the person under subsection 32 (1A) or (1B) of the Act; or
- (b) the person is:
 - (i) the holder of a fishing permit for the fishery that authorises the use of the boat to carry, tranship or process fish in the fishery; or
 - (ii) the holder of an SFR for which AFMA has authorised the person to use the boat to carry, tranship or process fish in the fishery.

Division 4.2 Overcatch and undercatch

29 Obligation relating to overcatch

- (1) Subsection (2) applies to the holder of a quota SFR for a quota species if:
 - (a) in a season (the **first season**), the holder takes (or is taken, by a previous application of this section, to have taken) a weight of fish of the quota species that exceeds, by a percentage less than the determined percentage, the holder's quota for that species for the season; and
 - (b) at the end of the last day of the second month of the following season (the **second season**), the holder holds statutory fishing rights that would, in the absence of this section, entitle the holder to take a weight of fish of that species at least equal to the weight by which the holder exceeded the quota mentioned in paragraph (a).

Section 29

- (2) The holder is taken to have taken:
- (a) during the first season, a weight of fish of the quota species mentioned in paragraph (1) (a) that is equal to the quota allocated to the SFR held by the holder in the first season; and
 - (b) during the second season, a weight of fish of that species equal to the weight by which the holder exceeded the quota of that species allocated to the holder in the first season, in addition to the weight actually taken by the holder in the second season.
- (3) Subsection (4) applies to the holder of a statutory fishing right for a quota species if:
- (a) in a season (the **first season**), the holder takes (or is taken, by a previous application of this section, to have taken) a weight of fish of the quota species that exceeds the holder's quota for that species in the season by:
 - (i) at least the determined percentage; and
 - (ii) an amount equal to or less than the sum of:
 - (A) the result of multiplying the holder's quota in the first season by the determined percentage; and
 - (B) the determined weight; and
 - (b) at the end of the last day of the second month of the following season (the **second season**), the holder holds statutory fishing rights that would, in the absence of this section, entitle the holder to take a weight of fish of that species at least equal to the sum of:
 - (i) the result of multiplying the holder's quota in the first season by the determined percentage; and
 - (ii) twice the amount by which the holder's overcatch in the first season exceeded the determined percentage.
- (4) The holder is taken to have taken:
- (a) during the first season, a weight of fish of the quota species mentioned in paragraph (3) (a) that is equal to the quota allocated to the statutory fishing rights held by the holder in the first season; and
 - (b) during the second season, a weight of fish of that species equal to the sum of:
 - (i) the result of multiplying the holder's quota in the first season by the determined percentage; and
 - (ii) twice the amount by which the holder's overcatch in the first season exceeded the determined percentage;in addition to the weight actually taken by the holder in the second season.

Section 30

- (5) In this section:

determined percentage, for a quota species, sub-area and a fishing season, means the percentage for that species, sub-area and season specified in a determination made by AFMA for this section.

Note The percentage is intended to be a percentage of the quota allocated to the SFR for that species, sub-area and season held by a person for that season.

determined weight, for a quota species, sub-area and a fishing season, means the weight specified in a determination made by AFMA for this section.

Note The weight is intended to be the weight of that species that may be taken in the sub-area and season.

- (6) If AFMA determines a percentage for quota species for a fishing season under subsection (5), that percentage must not be greater than 10%.
- (7) For this section, a statutory fishing right holder's **overcatch** of a quota species in a fishing season is the weight of fish of that species taken by the holder in the season that exceeds the holder's quota for that species for the season.

Note A determination under this section is a disallowable instrument: see subsection 17 (6B) of the Act.

30 Obligation relating to undercatch

- (1) This section applies to the holder of a statutory fishing right if:
- (a) in a fishing season (the **first season**), the holder takes:
 - (i) an amount of a quota species that is less than the quota for that species allocated to the SFRs held by the holder in that season; or
 - (ii) no fish of a quota species; and
 - (b) in the following fishing season (the **second season**), the holder holds 1 or more statutory fishing rights for that species.
- (2) The holder may, during the second season, take a weight of fish of the quota species mentioned in paragraph (1) (a) that is the sum of:
- (a) the quota allocated to SFRs held by the holder in the second season; and
 - (b) an amount equal to the lesser of:
 - (i) the difference between the weight of fish of that species taken by the holder in the first season and the quota allocated to the holder's SFRs in that season; and
 - (ii) the result of multiplying the holder's quota for that species in the first year by the determined percentage for that species and year.

- (3) In this section:

determined percentage, for a quota species and a fishing season, means the percentage for that species and season specified in a determination made by AFMA for this section.

Section 30

- (4) If AFMA determines a percentage for quota species for a fishing season under subsection (3), that percentage must not be greater than 10%.

Note 1 The percentage is intended to be a percentage of the quota allocated to the SFR for that species, sub-area and season held by a person for that season.

Note 2 Subsection 17 (6B) of the Act provides that a determination under this section is a disallowable instrument for the purposes of section 46A of the *Acts Interpretation Act 1901*. Although section 46A of the *Acts Interpretation Act 1901* has been repealed, section 6 of the *Legislative Instruments Act 2003* provides that such an instrument is a disallowable instrument.

- (1) This section applies if AFMA publishes a notice under section 24 of the Act:
 - (a) declaring that AFMA intends to grant SFRs for the fishery; and
 - (b) specifying the notice period.
- (2) For paragraph 26 (2) (a) of the Act, a person satisfies the conditions for registration if:
 - (a) before the end of the notice period mentioned in paragraph (1) (a), the person applied to AFMA for registration as an eligible person for a grant of 1 or more SFRs for the fishery; and
 - (b) at the end of the notice period the person holds 1 or more of the instruments mentioned in the following table.

Note 2 An application for registration as an eligible person for the grant of an SFR must be made within the period stated in a notice published under section 24 of the Act — see paragraph 25 (f) of the Act.

Section 32

Note 3 Under subsection 26 (2) of the Act, AFMA must register as an eligible person an applicant for registration who meets the conditions for registration and who has paid the prescribed fee (if any). At present there is no prescribed fee.

Note 4 A decision under subsection 26 (2) of the Act is subject to reconsideration under section 165 of the Act — see subsection 165 (2) of the Act. Application may be made to the Administrative Review Tribunal for review of a decision under section 165 of the Act — see subsection 165 (7) of the Act.

32 Availability of SFRs to holders of fishing permits for purse seine only — Zone A permit or Mackerel B licence

(1) In this section:

total permits and licences, for a year during the relevant period, means the total number of Zone A purse seine permits and Mackerel B licences held by eligible persons that:

- (a) form part of sequences of those permits or licences; and
- (b) were in force during the year.

(2) If:

- (a) an eligible person holds:
 - (i) a Zone A purse seine permit that is 1 of a sequence of those permits; or
 - (ii) a Mackerel B licence that is 1 of a sequence of those licences; and
- (b) in a year during the relevant period, a permit or licence mentioned in paragraph (a) (i) or (ii) that formed part of 1 of the sequences was in force for that year;

the following are available to the person for each permit or licence:

$$\frac{320\,000 \text{ eastern sub-area redbait SFRs}}{\text{Total permits and licences}}$$

$$\frac{180\,000 \text{ western sub-area redbait SFRs}}{\text{Total permits and licences}}$$

$$\frac{64\,000 \text{ eastern sub-area blue mackerel SFRs}}{\text{Total permits and licences}}$$

$$\frac{36\,000 \text{ western sub-area blue mackerel SFRs}}{\text{Total permits and licences}}$$

$$\frac{256\,000 \text{ eastern sub-area jack mackerel SFRs}}{\text{Total permits and licences}}$$

144 000 western sub-area jack mackerel SFRs
Total permits and licences

33 Availability of SFRs to holders of Mackerel A licences — Zone A

If an eligible person holds a Mackerel A licence, the following are available to the person for each licence:

8 000 000 eastern sub-area redbait SFRs
Total number of Mackerel A licences held by eligible persons

4 500 000 western sub-area redbait SFRs
Total number of Mackerel A licences held by eligible persons

1 600 000 eastern sub-area blue mackerel SFRs
Total number of Mackerel A licences held by eligible persons

900 000 western sub-area blue mackerel SFRs
Total number of Mackerel A licences held by eligible persons

6 400 000 eastern sub-area jack mackerel SFRs
Total number of Mackerel A licences held by eligible persons

3 600 000 western sub-area jack mackerel SFRs
Total number of Mackerel A licences held by eligible persons

34 Availability of SFRs to mid-water trawl permit holders — Zone A

If an eligible person is the holder of a Zone A mid-water trawl permit, the following are available to the person for each permit:

640 000 eastern sub-area redbait SFRs
Total number of Zone A mid-water trawl permits held by eligible persons

360 000 western sub-area redbait SFRs
Total number of Zone A mid-water trawl permits held by eligible persons

Section 35

$$\frac{128\,000 \text{ eastern sub-area blue mackerel SFRs}}{\text{Total number of Zone A mid-water trawl permits held by eligible persons}}$$
$$\frac{72\,000 \text{ western sub-area blue mackerel SFRs}}{\text{Total number of Zone A mid-water trawl permits held by eligible persons}}$$
$$\frac{512\,000 \text{ eastern sub-area jack mackerel SFRs}}{\text{Total number of Zone A mid-water trawl permits held by eligible persons}}$$
$$\frac{288\,000 \text{ western sub-area jack mackerel SFRs}}{\text{Total number of Zone A mid-water trawl permits held by eligible persons}}$$

35 Availability of SFRs to permit holders — Zone B

(1) In this section:

western sub-area blue mackerel share means:

$$\frac{5\,000\,000 \text{ western sub-area blue mackerel SFRs}}{\text{Zone B factor}}$$

western sub-area jack mackerel share means:

$$\frac{4\,000\,000 \text{ western sub-area jack mackerel SFRs}}{\text{Zone B factor}}$$

western sub-area redbait share means:

$$\frac{1\,000\,000 \text{ western sub-area redbait SFRs}}{\text{Zone B factor}}$$

Zone B factor means the sum of the following:

- (a) the total number of Zone B purse seine permits held by eligible persons;
 - (b) the total number of Zone B mid-water trawl permits held by eligible persons;
 - (c) 1.5 times the total number of Zone B dual gear permits held by eligible persons.
- (2) If an eligible person is the holder of a Zone B dual gear permit, the following are available to the person for each permit:
- (a) 1.5 western sub-area blue mackerel shares;
 - (b) 1.5 western sub-area jack mackerel shares;

- (c) 1.5 western sub-area redbait shares.
- (3) If an eligible person is the holder of a Zone B mid-water trawl permit, the following are available to the person for each permit:
 - (a) 1 western sub-area blue mackerel shares;
 - (b) 1 western sub-area jack mackerel shares;
 - (c) 1 western sub-area redbait shares.
- (4) If an eligible person is the holder of a Zone B purse seine permit, the following are available to the person for each permit:
 - (a) 1 western sub-area blue mackerel share;
 - (b) 1 western sub-area jack mackerel share;
 - (c) 1 western sub-area redbait shares.

36 Availability of SFRs to permit holders — Zone C

- (1) In this section:

western sub-area blue mackerel share means:

$$\frac{3\,500\,000 \text{ western sub-area blue mackerel SFRs}}{\text{Zone C factor}}$$

western sub-area jack mackerel share means:

$$\frac{2\,500\,000 \text{ western sub-area jack mackerel SFRs}}{\text{Zone C factor}}$$

western sub-area redbait share means:

$$\frac{1\,000\,000 \text{ western sub-area redbait SFRs}}{\text{Zone C factor}}$$

Zone C factor means the sum of the following:

- (a) the total number of Zone C purse seine permits held by eligible persons;
 - (b) the total number of Zone C mid-water trawl permits held by eligible persons;
 - (c) 1.5 times the total number of Zone C dual gear permits held by eligible persons.
- (2) If an eligible person holds a Zone C dual gear permit, the following are available to the person for each permit:
- (a) 1.5 western sub-area blue mackerel shares;
 - (b) 1.5 western sub-area jack mackerel shares;
 - (c) 1.5 western sub-area redbait shares.

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- (3) If an eligible person holds a Zone C mid-water trawl permit, the following are available to the person for each permit:
- (a) 1 western sub-area blue mackerel shares;
 - (b) 1 western sub-area jack mackerel shares;
 - (c) 1 western sub-area redbait shares.
- (4) If an eligible person holds a Zone C purse seine permit, the following are available to the person for each permit:
- (a) 1 western sub-area blue mackerel share;
 - (b) 1 western sub-area jack mackerel share;
 - (c) 1 western sub-area redbait share.

37 Availability of SFRs to permit holders — Zone D

- (1) In this section:

eastern sub-area blue mackerel share means:

$$\frac{1\,750\,000 \text{ eastern sub-area blue mackerel SFRs}}{\text{Zone D factor}}$$

eastern sub-area jack mackerel share means:

$$\frac{1\,250\,000 \text{ eastern sub-area jack mackerel SFRs}}{\text{Zone D factor}}$$

eastern sub-area redbait share means:

$$\frac{500\,000 \text{ eastern sub-area redbait SFRs}}{\text{Zone D factor}}$$

Note **Zone D factor** is defined in section 3.

- (2) If an eligible person is the holder of a Zone D dual gear permit, the following are available to the person for each permit:
- (a) 1.5 eastern sub-area blue mackerel shares;
 - (b) 1.5 eastern sub-area jack mackerel shares;
 - (c) 1.5 eastern sub-area redbait shares.
- (3) If an eligible person is the holder of a Zone D mid-water trawl permit, the following are available to the person for each permit:
- (a) 1 eastern sub-area blue mackerel shares;
 - (b) 1 eastern sub-area jack mackerel shares;
 - (c) 1 eastern sub-area redbait shares.

Section 38

- (4) If an eligible person is the holder of a Zone D purse seine permit, the following are available to the person for each permit:
- (a) 1 eastern sub-area blue mackerel share;
 - (b) 1 eastern sub-area jack mackerel share;
 - (c) 1 eastern sub-area redbait shares.

38 Availability of SFRs to sequence permit holders — Zone D

- (1) In this section:

BM is an acronym for blue mackerel.

BM SFR is an acronym for eastern sub-area blue mackerel SFR.

JM is an acronym for jack mackerel.

JM SFR is an acronym for eastern sub-area jack mackerel SFR.

RB is an acronym for redbait.

RB SFR is an acronym for eastern sub-area redbait SFR.

person's catch history, for a species and a person that is the holder of a sequence of Zone D permits, means the total weight of fish of the species taken from 1 January 1996 to 6 July 2004 under the person's sequence of Zone D permits, as recorded in an approved AFMA Logbook completed by or on behalf of each holder of a permit in the sequence.

total catch, of a species, means the total weight of fish of the species taken in Zone D by eligible persons:

- (a) from 1 January 1996 to 6 July 2004 inclusive (as recorded in an approved AFMA Logbook); and
 - (b) who hold a sequence of Zone D permits.'
- (2) If an eligible person holds a sequence of Zone D permits, the following are available to the person for each permit:

$$\frac{1\,750\,000 \text{ eastern sub-area BM SFRs} \times \text{person's catch history of BM}}{\text{Total catch of BM}}$$

$$\frac{1\,250\,000 \text{ eastern sub-area JM SFRs} \times \text{person's catch history of JM}}{\text{Total catch of JM}}$$

$$\frac{500\,000 \text{ eastern sub-area RB SFRs} \times \text{person's catch history of RB}}{\text{Total catch of RB}}$$

Section 39

39 Availability of eastern sub-area blue mackerel SFRs to holders of Informally Managed Fishery permit — Australian sardine and blue mackerel

- (1) In this section:

eastern sub-area blue mackerel share means:

$$\frac{1\,750\,000 \text{ eastern sub-area blue mackerel SFRs}}{\text{Zone D factor}}$$

Note **Zone D factor** is defined in section 3.

- (2) If an eligible person is the holder of an Informally Managed Fishery permit — Australian sardine and blue mackerel, the number of eastern sub-area blue mackerel SFRs available to the person for each permit is 1 eastern sub-area blue mackerel share.

40 Availability of Australian Sardine SFRs

- (1) In this section:

Australian sardine factor means the sum of the following:

- (a) 1.25 times the total number of Informally Managed Fishing permits — Australian sardine and blue mackerel held by eligible persons; and
- (b) the total number of Informally Managed Fishing Permits — Australian sardine held by eligible persons.

Australian sardine share means:

$$\frac{3\,000\,000 \text{ Australian sardine SFRs}}{\text{Australian sardine factor}}$$

- (2) If an eligible person is the holder of an Informally Managed Fishery permit — Australian sardine, the number of Australian Sardine SFRs available to the person for each permit is 1 Australian sardine share.
- (3) If an eligible person is the holder of an Informally Managed Fishery permit — Australian sardine and blue mackerel, the number of Australian Sardine SFRs available to the person for each permit is 1.25 Australian sardine shares.

41 Request for grant

If a person is an eligible person, the person is taken to have made a request under section 31 of the Act for a grant of an SFR or SFRs that are available to the person under this Part.

42 Certificate showing grant

- (1) If AFMA gives a person a certificate evidencing the grant of an SFR for the fishery under subsection 22 (2) of the Act, AFMA must note the following details on the certificate:
 - (a) the name of the person to whom the SFR is granted;
 - (b) a description of the SFR;
 - (c) that the SFR is granted for the fishery;
 - (d) the conditions to which the SFR is subject.
- (2) A certificate may show the grant of more than 1 SFR to a person.
- (3) AFMA must give to a person to whom an SFR is granted an extract of the Register that states the conditions to which the SFR is subject.

Note Section 45 of the Act provides that AFMA must enter certain information in the Register for each SFR that it grants, including such particulars as are prescribed.

Part 7 Obligations applying to holders of SFRs

49 Purpose of Part 7

- (1) For paragraph 22 (3) (a) of the Act, the purpose of Part 7 is to impose conditions on all holders of SFRs.
- (2) For sections 38, 39 and 95 of the Act, an obligation imposed on the holder of an SFR by this Part is a condition of the SFR.

50 General obligations

- (1) The holder of an SFR must:
 - (a) comply with this Management Plan; and
 - (c) take all reasonable measures to ensure that by-catch, and the impact of fishing operations on the marine environment, are kept to a minimum; and
 - (d) take all reasonable steps to minimise the loss of fishing gear; and
 - (e) ensure that all fish unloaded from the fishery are unloaded within Australia or an external Territory; and
 - (h) if required by AFMA in writing to do so, give AFMA reasonable access to biological, economic or technical information, or biological samples that are available to the holder; and
- (2) However, paragraph (1) (e) does not apply if the holder receives written approval from AFMA before landing the catch outside Australia or an external Territory.

Note 1 See subsections 22 (3), (4) and (5) of the Act for additional obligations to which an SFR is subject.

Note 2 It is an offence to contravene a condition of an SFR — see section 95 of the Act.

Note 3 See subsections 32 (5), (6), (7) and (8) of the Act for obligations to which a fishing permit is subject.

Note 4 The holder of an SFR must also comply with the Act and with any provisions of the *Fisheries Management Regulations 2019* applying to the fishery.

Note 5 See section 38 of the Act for AFMA's power to suspend a fishing concession if it has reasonable grounds to believe that there has been a breach of an obligation to which the concession is subject.

Note 6 See Part 3 about directions given under paragraph 17 (5A) (a) of the Act.

51 Obligations relating to fishing in more than 1 area

- (1) The holder of an SFR must not fish under a permit (however described) issued under a State or Territory law if, on board the boat being used, there are fish taken under the SFR.

- (2) The holder of an SFR must not fish in a sub-area of the fishery if, on board the boat being used, there are fish that were taken:
- (a) in another sub-area; or
 - (b) in the high seas; or
 - (c) under a permit, however described, issued under a law of a State or Territory.
- (3) However, if AFMA gives written approval to the holder for fishing that would contravene subsection (1) or (2), the holder may fish in accordance with the approval.

Part 9 Miscellaneous

54 Delegation

AFMA may, by writing under its common seal, delegate to an officer of AFMA any of its powers or functions under this Plan, other than its powers or functions under sections 17, 21, 24, 29 and this section.

Note AFMA may delegate its powers under sections 17, 21, 24 and 29 to the Managing Director of AFMA, see subsection 17 (11) of the Act.

55 Approved form

- (1) AFMA may approve a form for the purposes of a section of this Plan.
- (2) An approval under subsection (1) must be in writing.

56 Agents

- (1) If the holder of an SFR appoints a person to be the holder's agent for any matter to which this Management Plan applies, the holder must, as soon as practicable, give AFMA a notice in the approved form specifying the name of the agent and the powers that may be exercised by the agent.
- (2) For this Management Plan, the appointment of an agent by the holder of an SFR is of no effect unless AFMA has been notified of the appointment under subsection (1).
- (3) For the purpose of making a decision about an application under a provision of this Management Plan:
 - (a) AFMA may assume that a notice given under this section is properly given; and
 - (b) AFMA is under no duty to verify, by other means, the authority of an agent to make the application.

57 Notices

- (1) A notice to the holder of a fishing concession is taken to be given to the holder if it is:
 - (a) delivered to the holder's residential or office address; or
 - (b) posted to the holder's postal address; or
 - (c) sent by fax to the holder's fax number; or
 - (d) sent by e-mail to the holder's e-mail address.

Section 57

- (2) A notice is taken to have been given to the holder:
- (a) if the notice is delivered to the holder's residential or office address — on the day when it is delivered; and
 - (b) if the notice is sent by fax to the holder's fax number, or by e-mail to the holder's e-mail address:
 - (i) 24 hours after the notice is sent; or
 - (ii) if that time does not fall between 9 am and 5 pm on a working day in the place to which the notice is sent — at 9 am on the next working day in that place.

Note Under subsection 160 (1) of the *Evidence Act 1995*, it is presumed (unless evidence is presented that is sufficient to raise doubt about the presumption) that a postal article sent by pre-paid post addressed to a person at a specified address in Australia, or in an external Territory, was received at that address on the fourth working day after it was posted.

- (3) A notice to AFMA must:
- (a) be addressed to the Manager, Licensing, Australian Fisheries Management Authority; and
 - (b) be delivered, posted or sent by fax or e-mail.

Part 10 Transitional

58 Transitional

- (1) This section ceases to have effect on the day specified in a notice published in the *Gazette* under subsection (2).
- (2) On, or as soon as practicable after, the day that the first SFRs granted under this Management Plan come into effect, AFMA must publish a notice in the *Gazette* stating that this section ceases to have effect on a day specified in the notice.
- (3) The day specified in a notice under subsection (2) must not be earlier than the day on which the notice is published.
- (4) Despite section 25, a person may engage in fishing in the fishery if:
 - (a) the person holds a fishing permit authorising fishing in the fishery; and
 - (b) the permit is in force.
- (5) This Management Plan does not affect a fishing permit that authorises fishing in the fishery, or a condition to which the permit is subject.
- (7) This Management Plan does not prevent AFMA from granting or transferring a fishing permit that authorises fishing in the fishery.

Schedule 1 Sub-areas of the fishery

(section 3)

1 Eastern sub-area

The area of the eastern sub-area is the part of the AFZ bounded by a notional line beginning at the point of intersection of the parallel of latitude 24° 29' 54" S and the meridian of longitude 154° 40' 04" E, and running progressively as described in the following table.

Item	Description
1	East along that parallel to its intersection with the outer limit of the AFZ
2	Generally southerly and westerly along the outer limit of the AFZ to the intersection with the longitude 146° 30' E
3	North along that meridian to the point of intersection with the coastline of Tasmania
4	Generally easterly, northerly and westerly along that coastline to the intersection of the meridian of longitude 146° 30' E
5	North along that meridian to the intersection with the coastline of Victoria
6	Generally northerly and easterly along the Australian coastline to the intersection of the eastern shore of Australia with the parallel of latitude 28° 10' S
7	East along that parallel to its intersection with the meridian of longitude 154° 40' 04" E
8	North along that meridian to the point where the line began

2 Western sub-area

The area of the western sub-area is the part of the AFZ bounded by a notional line beginning at the intersection of the parallel of latitude 31° 00' S and the coastline of Western Australia, and running progressively as described in the following table.

Item	Description
1	West along that parallel to the intersection with the outer limit of the AFZ
2	Generally southerly and easterly along that outer limit to the point of intersection with the meridian of longitude 146° 30' E
3	North along that meridian to the intersection with the coastline of Tasmania
4	Generally westerly, northerly and easterly along the coastline to the intersection with the meridian of longitude 146° 30' E

Item	Description
------	-------------

- | | |
|---|---|
| 5 | North along the meridian to the intersection with the coastline of Victoria |
| 6 | Generally northerly and westerly along the Australian coastline to the point where the line began |
-

3 Australian sardine sub-area

The area of the Australian sardine sub-area is the part of the AFZ bounded by a notional line beginning at the point of intersection of the parallel of latitude 24° 29' 54" S and the meridian of longitude 154° 40' 04" E and running progressively as described in the following table.

Item	Description
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- | | |
|---|---|
| 1 | East along that parallel to its intersection with the outer limit of the AFZ |
| 2 | Generally southerly to the intersection of the geodesic which is a continuation of the landward boundary between New South Wales and Victoria |
| 3 | West along the geodesic to the intersection with the eastern shore of Australia |
| 4 | Generally northerly and easterly along the Australian coastline to the intersection of the eastern shore of Australia with the parallel of latitude 28° 10' S |
| 5 | East along that parallel to its intersection with the meridian of longitude 154° 40' 04" E |
| 6 | North along the meridian to the point where the line began |
-

Schedule 2 Zones A, B, C and D

(section 3)

1 Zone A

The area of Zone A is the part of the AFZ bounded by a notional line beginning at the intersection of the parallel of latitude 42° 12' S with the western coastline of Tasmania, and running progressively as described in the following table.

Item	Description
1	West along that parallel to the intersection with the outer limit of the AFZ
2	Generally south-easterly, easterly, north-easterly and northerly along that outer limit to the intersection with the parallel of latitude 39° 30' S
3	West along that parallel to the intersection with the meridian of longitude 146° 30' E
4	South along that meridian to its point of intersection with the northern coastline of Tasmania
5	Generally westerly, southerly and south-easterly along the coastline to the point where the line began.

2 Zone B

The area of Zone B is the part of the AFZ bounded by a notional line beginning at the intersection of the meridian of longitude 31° 00' S and the coastline of Western Australia, and running progressively as described in the following table.

Item	Description
1	West along that parallel to the intersection with the outer limit of the AFZ
2	Generally southerly and easterly along that outer limit to the point of intersection with the meridian of longitude 138° 08' 05" E
3	North along that meridian to the intersection with the coastline of South Australia
4	Generally southerly and westerly along that coastline to the point where the line began.

3 Zone C

The area of Zone C is the part of the AFZ bounded by the notional line beginning at the intersection of the meridian of longitude 138° 08' 05" E and the coastline of South Australia then running progressively as described in the following table.

Item	Description
1	South along that meridian to the point of intersection to the outer limit of

Item	Description
	the AFZ
2	Generally south-easterly and southerly along that outer limit to the intersection with the parallel of latitude 42° 12' S
3	East along that parallel to its intersection with the coastline of Tasmania
4	Generally north-westerly and easterly along the coastline to the point of intersection with the meridian of longitude 146° 30' E
5	North along that meridian to its intersection with the coastline of Victoria
6	Generally westerly and north-westerly along the coastline to the point of where the line began.

4 Zone D

The area of Zone D is the part of the AFZ bounded by a notional line beginning at the intersection of the parallel of latitude 28° 10' S with the coastline of New South Wales then running progressively as described in the following table.

Item	Description
1	East along that parallel of latitude to the intersection with the outer limit of the AFZ
2	Generally southerly, westerly and easterly along the outer limit of the AFZ to the intersection with the parallel of latitude 39° 30' S
3	East along that parallel to the intersection with the meridian of longitude 146° 30' E
4	North along that meridian to the point of intersection with the coastline of Victoria
5	Generally northerly, easterly and westerly along the coastline to the point where the line began.

Schedule 3 IMF 1 and IMF 2 sub-areas

(section 3)

1 IMF 1 sub-area

The area of the IMF 1 sub-area is the part of the AFZ bounded by a notional line commencing at the point of intersection of the parallel of latitude 24° 29' 54" S and longitude 154° 40' 4" E then running progressively as described in the following table.

Item	Description
1	South along that meridian of longitude 154° 40' 4" E to its intersection with the parallel of latitude 27° 47' 25.29" S
2	South-westerly along the geodesic to the point of latitude 27° 48' S and longitude 154° 22' E
3	South-westerly along the geodesic to the point of latitude 27° 58' S and longitude 154° 22' E
4	South-westerly along the geodesic to the point of latitude intersection of the eastern shore of Australia with the parallel of latitude 28° 10' S
5	East along the parallel of latitude 28° 10' S to its intersection with the outer limit of the AFZ
6	Generally northerly, westerly, easterly, northerly to its intersection with the parallel of latitude 24° 29' 54" S
7	West along the parallel of latitude 24° 29' 54" S to the point where the line began.

2 IMF 2 sub-area

The area of the IMF 2 sub-area is the part of the AFZ bounded by a notional line commencing at the point of intersection of the parallel of latitude 28° 10' S with the coastline of New South Wales and running progressively as described in the following table.

Item	Description
1	East along that parallel to its intersection with the outer limit of the AFZ
2	Generally southerly, westerly and easterly along the outer limit of the AFZ to the intersection with the geodesic which is a continuation of the landward boundary between the New South Wales and Victoria
3	North westerly along that geodesic to the intersection with the coastline of New South Wales
4	Generally northerly, easterly and westerly along that coastline to the point where the line began.

Schedule 4 Quota species

(section 3)

Item	Common name	Scientific name
1	Blue mackerel	<i>Scomber australasicus</i>
2	Jack mackerel	<i>Trachurus declivis</i> or <i>Trachurus murphyi</i>
3	Australian sardine	<i>Sardinops sagax</i>
4	Redbait	<i>Emmelichthys nitidus</i>

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnotes

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnote 3—Legislation history

Endnote 3—Legislation history

Name	Registration	Commencement	Application, saving and transitional provisions
Small Pelagic Fishery Management Plan 2009	12 Jan 2010 (F2010L00081)	13 Jan 2010 (s 2)	
Fisheries Legislation (Management Plans) Amendment 2011 (No. 1)	19 Dec 2011 (F2011L02746)	Sch 9: 20 Dec 2011 (s 2)	—
Small Pelagic Fishery Management Plan Amendment 2013	30 Apr 2014 (F2014L00458)	1 May 2014 (s 2)	—
Fisheries Management Legislation Amendment (Minor Updates to Management Plans) Instrument 2024	16 Sept 2024 (F2024L01167)	Sch 1 (items 21–25): 14 Oct 2024 (s 2(1) item 1)	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 2.....	rep LA s 48D
s 3.....	am F2011L02746; F2024L01167
Part 2	
s 15.....	am F2011L02746
Part 4	
s 25.....	am F2011L02746
s 26.....	am F2011L02746
Part 5	
s 31.....	am F2024L01167
s 42.....	am F2024L01167
s 43.....	rep F2011L02746
s 44.....	rep F2011L02746
s 45.....	rep F2011L02746
Part 6.....	rep F2011L02746
s 46.....	rep F2011L02746
s 47.....	rep F2011L02746
s 48.....	rep F2011L02746
Part 7	
s 50.....	am F2011L02746; F2014L00458; F2024L01167
s 51.....	am F2024L01167
s 52.....	rep F2011L02746
Part 8	
s 53.....	rep F2011L02746
Part 10	
s 58.....	am F2011L02746
	exp s 58(1)